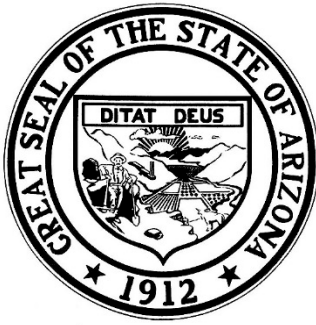




Bill Number: H.B. 2415

Kavanagh Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Stipulates that law enforcement agencies and crime laboratories are not required to test or analyze products to identify the presence of kratom, or to distinguish between natural and synthetic kratom, if the law enforcement agency or laboratory does not possess the necessary capability to test the product.
2. Allows the Attorney General to coordinate kratom testing and analysis through a qualified laboratory if a law enforcement agency or crime laboratory does not have the capability to test or analyze kratom.

KAVANAGH FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2415
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3401, Arizona Revised Statutes, is amended to
3 read:

4 13-3401. Definitions

5 In this chapter, unless the context otherwise requires:

6 1. "Administer" means to apply, inject or facilitate the inhalation
7 or ingestion of a substance to the body of a person.

8 2. "Amidone" means any substance identified chemically as
9 (4-4-diphenyl-6-dimethylamine-heptanone-3), or any salt of such substance,
10 by whatever trade name designated.

11 3. "Board" means the Arizona state board of pharmacy.

12 4. "Cannabis" means the following substances under whatever names
13 they may be designated:

14 (a) The resin extracted from any part of a plant of the genus
15 cannabis, and every compound, manufacture, salt, derivative, mixture or
16 preparation of such plant, its seeds or its resin. Cannabis does not
17 include oil or cake made from the seeds of such plant, any fiber,
18 compound, manufacture, salt, derivative, mixture or preparation of the
19 mature stalks of such plant except the resin extracted from the stalks or
20 any fiber, oil or cake or the sterilized seed of such plant which is
21 incapable of germination.

22 (b) Every compound, manufacture, salt, derivative, mixture or
23 preparation of such resin or tetrahydrocannabinol.

24 5. "Coca leaves" means cocaine, its optical isomers and any
25 compound, manufacture, salt, derivative, mixture or preparation of coca
26 leaves, except derivatives of coca leaves which do not contain cocaine,
27 ecgonine or substances from which cocaine or ecgonine may be synthesized
28 or made.

1 6. "Dangerous drug" means the following by whatever official,
2 common, usual, chemical or trade name designated:

3 (a) Any material, compound, mixture or preparation that contains
4 any quantity of the following hallucinogenic substances and their salts,
5 isomers, whether optical, positional or geometric, and salts of isomers,
6 unless specifically excepted, whenever the existence of such salts,
7 isomers and salts of isomers is possible within the specific chemical
8 designation:

- 9 (i) Alpha-ethyltryptamine.
- 10 (ii) Alpha-methyltryptamine.
- 11 (iii) (2-aminopropyl) benzofuran (APB).
- 12 (iv) (2-aminopropyl)-2, 3-dihydrobenzofuran (APDB).
- 13 (v) Aminorex.
- 14 (vi) 4-bromo-2, 5-dimethoxyphenethylamine.
- 15 (vii) 4-bromo-2, 5-dimethoxyamphetamine.
- 16 (viii) Bufotenine.
- 17 (ix) [3-(3-carbamoylphenyl)phenyl]N-cyclohexyl carbamate (URB-597).
- 18 (x) Diethyltryptamine.
- 19 (xi) 2, 5-dimethoxyamphetamine.
- 20 (xii) Dimethyltryptamine.
- 21 (xiii) (2-ethylaminopropyl)-benzofuran (EAPB).
- 22 (xiv) 5-methoxy-alpha-methyltryptamine.
- 23 (xv) 5-methoxy-3, 4-methylenedioxyamphetamine.
- 24 (xvi) 4-methyl-2, 5-dimethoxyamphetamine.
- 25 (xvii) (2-methylaminopropyl)-benzofuran (MAPB).
- 26 (xviii) Ibogaine.
- 27 (xix) Lysergic acid amide.
- 28 (xx) Lysergic acid diethylamide.
- 29 (xxi) Mescaline.
- 30 (xxii) 4-methoxyamphetamine.
- 31 (xxiii) Methoxymethylenedioxyamphetamine (MMDA).
- 32 (xxiv) Methylenedioxyamphetamine (MDA).
- 33 (xxv) 3, 4-methylenedioxymethamphetamine.
- 34 (xxvi) 3, 4-methylenedioxy-N-ethylamphetamine.
- 35 (xxvii) N-ethyl-3-piperidyl benzilate (JB-318).
- 36 (xxviii) N-hydroxy-3, 4-methylenedioxyamphetamine.
- 37 (xxix) N-methyl-3-piperidyl benzilate (JB-336).
- 38 (xxx) N-methyltryptamine mimetic substances that are any substances
39 derived from N-methyltryptamine by any substitution at the nitrogen, any
40 substitution at the indole ring, any substitution at the alpha carbon, any
41 substitution at the beta carbon or any combination of the above.
42 N-methyltryptamine mimetic substances do not include melatonin
43 (5-methoxy n-acetyltryptamine). Substances in the N-methyltryptamine
44 generic definition include AcO-DMT, Baeocystine, Bromo-DALT, DiPT, DMT,
45 DPT, HO-DET, HO-DiPT, HO-DMT, HO-DPT, HO-MET, MeO-DALT, MeO-DET, MeO-DiPT,
46 MeO-DMT, MeO-DPT, MeO-NMT, MET, NMT and Norbufotenin.

- 1 (xxxi) N-(1-phenylcyclohexyl) ethylamine (PCE).
2 (xxxii) Nabilone.
3 (xxxiii) 1-(1-phenylcyclohexyl) pyrrolidine (PHP).
4 (xxxiv) 1-(1-(2-thienyl)-cyclohexyl) piperidine (TCP).
5 (xxxv) 1-(1-(2-thienyl)-cyclohexyl) pyrrolidine.
6 (xxxvi) Para-methoxyamphetamine (PMA).
7 (xxxvii) Psilacetin.
8 (xxxviii) Psilocybin.
9 (xxxix) Psilocyn.
10 (xl) Synhexyl.
11 (xli) Trifluoromethylphenylpiperazine (TFMPP).
12 (xlii) Trimethoxyamphetamine (TMA).
13 (xliii) 1-pentyl-3-(naphthoyl)indole (JWH-018 and isomers).
14 (xliv) 1-butyl-3-(naphthoyl)indole (JWH-073 and isomers).
15 (xlv) 1-hexyl-3-(naphthoyl)indole (JWH-019 and isomers).
16 (xlvi) 1-pentyl-3-(4-chloro naphthoyl)indole (JWH-398 and isomers).
17 (xlvii) 1-(2-(4-(morpholinyl)ethyl))-3-(naphthoyl)indole (JWH-200
18 and isomers).
19 (xlviii) 1-pentyl-3-(methoxyphenylacetyl)indole (JWH-250 and
20 isomers).
21 (xlix) (2-methyl-1-propyl-1H-indol-3-yl)-1-naphthalenyl-methanone
22 (JWH-015 and isomers).
23 (l) (6AR, 10AR)-9-(hydroxymethyl)-6,6-dimethyl-3-(2-methyloctan-2-yl)-
24 -6a,7,10,10a-tetrahydrobenzo[c]chromen-1-ol (HU-210).
25 (li) 5-(1,1-dimethylheptyl)-2-(3-hydroxycyclohexyl)-phenol
26 (CP 47,497 and isomers).
27 (lii) 5-(1,1-dimethyloctyl)-2-(3-hydroxycyclohexyl)-phenol
28 (cannabicyclohexanol, CP-47,497 C8 homologue and isomers).
29 (liii) Xylazine.
30 (b) Any material, compound, mixture or preparation that contains
31 any quantity of cannabimimetic substances and their salts, isomers,
32 whether optical, positional or geometric, and salts of isomers, unless
33 specifically excepted, whenever the existence of such salts, isomers and
34 salts of isomers is possible within the specific chemical designation. For
35 the purposes of this subdivision, "cannabimimetic substances" means any
36 substances within the following structural classes:
37 (i) 2-(3-hydroxycyclohexyl)phenol with substitution at the
38 5-position of the phenolic ring by alkyl or alkenyl, whether or not
39 substituted on the cyclohexyl ring to any extent. Substances in the
40 2-(3-hydroxycyclohexyl)phenol generic definition include CP-47,497,
41 CP-47,497 C8-Homolog, CP-55,940 and CP-56,667.
42 (ii) 3-(naphthoyl)indole or 3-(naphthylmethane)indole by
43 substitution at the nitrogen atom of the indole ring, whether or not
44 further substituted on the indole ring to any extent, whether or not
45 substituted on the naphthoyl or naphthyl ring to any extent. Substances in
46 the 3-(naphthoyl)indole generic definition include AM-678, AM-2201,

1 JWH-004, JWH-007, JWH-009, JWH-015, JWH-016, JWH-018, JWH-019, JWH-020,
2 JWH-046, JWH-047, JWH-048, JWH-049, JWH-050, JWH-070, JWH-071, JWH-072,
3 JWH-073, JWH-076, JWH-079, JWH-080, JWH-081, JWH-082, JWH-094, JWH-096,
4 JWH-098, JWH-116, JWH-120, JWH-122, JWH-148, JWH-149, JWH-175, JWH-180,
5 JWH-181, JWH-182, JWH-184, JWH-185, JWH-189, JWH-192, JWH-193, JWH-194,
6 JWH-195, JWH-196, JWH-197, JWH-199, JWH-200, JWH-210, JWH-211, JWH-212,
7 JWH-213, JWH-234, JWH-235, JWH-236, JWH-239, JWH-240, JWH-241, JWH-242,
8 JWH-262, JWH-386, JWH-387, JWH-394, JWH-395, JWH-397, JWH-398, JWH-399,
9 JWH-400, JWH-412, JWH-413, JWH-414 and JWH-415.

10 (iii) 3-naphthoyl-indazole or 3-(naphthylmethane)-indazole by
11 substitution at one or both of the nitrogen atoms of the indazole ring,
12 whether or not further substituted on the indazole ring to any extent,
13 whether or not substituted on the naphthoyl ring to any extent. Substances
14 in the 3-naphthoyl-indazole or 3-(naphthylmethane)-indazole generic
15 definition include THJ2201 and THJ-018.

16 (iv) 3-(naphthoyl)pyrrole by substitution at the nitrogen atom of
17 the pyrrole ring, whether or not further substituted in the pyrrole ring
18 to any extent, whether or not substituted on the naphthoyl ring to any
19 extent. Substances in the 3-(naphthoyl)pyrrole generic definition include
20 JWH-030, JWH-145, JWH-146, JWH-147, JWH-150, JWH-156, JWH-243, JWH-244,
21 JWH-245, JWH-246, JWH-292, JWH-293, JWH-307, JWH-308, JWH-346, JWH-348,
22 JWH-363, JWH-364, JWH-365, JWH-367, JWH-368, JWH-369, JWH-370, JWH-371,
23 JWH-373 and JWH-392.

24 (v) 1-(naphthylmethylene)indene by substitution of the 3-position
25 of the indene ring, whether or not further substituted in the indene ring
26 to any extent, whether or not substituted on the naphthyl ring to any
27 extent. Substances in the 1-(naphthylmethylene)indene generic definition
28 include JWH-176.

29 (vi) 3-(phenylacetyl)indole or 3-(benzoyl)indole by substitution at
30 the nitrogen atom of the indole ring, whether or not further substituted
31 in the indole ring to any extent, whether or not substituted on the phenyl
32 ring to any extent. Substances in the 3-(phenylacetyl)indole generic
33 definition include AM-694, AM-2233, JWH-167, JWH-201, JWH-202, JWH-203,
34 JWH-204, JWH-205, JWH-206, JWH-207, JWH-208, JWH-209, JWH-237, JWH-248,
35 JWH-250, JWH-251, JWH-253, JWH-302, JWH-303, JWH-304, JWH-305, JWH-306,
36 JWH-311, JWH-312, JWH-313, JWH-314, JWH-315, JWH-316, RCS-4, RCS-8, SR-18
37 and SR-19.

38 (vii) 3-(cyclopropylmethanone) indole or 3-(cyclobutylmethanone)
39 indole or 3-(cyclopentylmethanone) indole by substitution at the nitrogen
40 atom of the indole ring, whether or not further substituted in the indole
41 ring to any extent, whether or not substituted on the cyclopropyl,
42 cyclobutyl or cyclopentyl rings to any extent. Substances in the
43 3-(cyclopropylmethanone) indole generic definition include UR-144,
44 fluoro-UR-144 and XLR-11.

45 (viii) 3-adamantoylindole with substitution at the nitrogen atom of
46 the indole ring, whether or not further substituted on the indole ring to

1 any extent, whether or not substituted on the adamantyl ring to any
2 extent. Substances in the 3-adamantoylindole generic definition include
3 AB-001.

4 (ix) N-(adamantyl)-indole-3-carboxamide with substitution at the
5 nitrogen atom of the indole ring, whether or not further substituted on
6 the indole ring to any extent, whether or not substituted on the adamantyl
7 ring to any extent. Substances in the N-(adamantyl)-indole-3-carboxamide
8 generic definition include SDB-001.

9 (x) Indole-3-carboxamide or indazole-3-carboxamide with
10 substitution at the nitrogen atom of the indole ring or by substitution at
11 one or both of the nitrogen atoms of the indazole ring, whether or not
12 further substituted on the indole ring or the indazole ring to any extent,
13 whether or not substituted on the nitrogen of the carboxamide to any
14 extent. Substances in the indole-3-carboxamide or indazole-3-carboxamide
15 generic definition include AKB-48, fluoro-AKB-48, APINACA, AB-PINACA,
16 AB-FUBINACA, ABICA and ADBICA.

17 (xi) 8-Quinolinylnl-indole-3-carboxylate or 8-quinolinylnl-indazole-3-
18 carboxylate by substitution at the nitrogen atom of the indole ring or by
19 substitution at one or both of the nitrogen atoms of the indazole ring,
20 whether or not further substituted in the indole ring or indazole ring to
21 any extent, whether or not substituted on the quinoline ring to any
22 extent. Substances in the 8-quinolinylnl-indole-3-carboxylate or the
23 8-quinolinylnl-indazole-3-carboxylate generic definition include PB-22,
24 fluoro-PB-22, NPB-22 and fluoro-NPB-22.

25 (xii) Naphthalenyl-indole-3-carboxylate or naphthalenyl-indazole-3-
26 carboxylate by substitution at the nitrogen atom of the indole ring or by
27 substitution at one or both of the nitrogen atoms of the indazole ring,
28 whether or not further substituted in the indole or indazole ring to any
29 extent, whether or not substituted on the naphthalenyl ring to any extent.
30 Substances in the naphthalenyl-indole-3-carboxylate or
31 naphthalenyl-indazole-3-carboxylate generic definition include NM2201,
32 FDU-PB-22, SDB-005 and fluoro SDB-005.

33 (c) Any material, compound, mixture or preparation that contains
34 any quantity of the following substances and their salts, isomers, whether
35 optical, positional or geometric, and salts of isomers having a potential
36 for abuse associated with a stimulant effect on the central nervous
37 system:

38 (i) Alpha-pyrrolidinobutiophenone (Alpha-PBP).

39 (ii) Alpha-pyrrolidinopropiophenone (Alpha-PPP).

40 (iii) Alpha-pyrrolidinovalerophenone (Alpha-PVP).

41 (iv) Alpha-pyrrolidinovalerothiophenone (Alpha-PVT).

42 (v) Aminoindane mimetic substances that are derived from
43 aminoindane by any substitution at the indane ring, replacement of the
44 amino group with another N group or any combination of the above.
45 Substances in the aminoindane generic definition include MDAI, MMAI, IAI
46 and AMMI.

- 1 (vi) Amphetamine.
- 2 (vii) Benzphetamine.
- 3 (viii) Benzylpiperazine (BZP).
- 4 (ix) Beta-keto-n-methylbenzodioxolylbutanamine (Butylone).
- 5 (x) Beta-keto-n-methylbenzodioxolylpentanamine (Pentylone).
- 6 (xi) Butorphanol.
- 7 (xii) Cathine ((+)-norpseudoephedrine).
- 8 (xiii) Cathinomimetic substances that are any substances derived
- 9 from cathinone, (2-amino-1-phenyl-1-propanone) by any substitution at the
- 10 phenyl ring, any substitution at the 3 position, any substitution at the
- 11 nitrogen atom or any combination of the above substitutions.
- 12 (xiv) Cathinone.
- 13 (xv) 2-(4-Chloro-2,5-dimethoxyphenyl)ethanamine (2C-C).
- 14 (xvi) Chlorphentermine.
- 15 (xvii) Clortermine.
- 16 (xviii) Diethylpropion.
- 17 (xix) Dihydro-5H-indeno-(5,6-d)-1,3-dioxol-6-amine) (MDAI).
- 18 (xx) 2-(2,5-Dimethoxy-4-ethylphenyl)ethanamine (2C-E).
- 19 (xxi) 2-(2,5-Dimethoxy-4-methylphenyl)ethanamine (2C-D).
- 20 (xxii) 2-(2,5-Dimethoxy-4-nitro-phenyl)ethanamine (2C-N).
- 21 (xxiii) 2-(2,5-Dimethoxy-4-(n)-propylphenyl)ethanamine (2C-P).
- 22 (xxiv) 2-(2,5-Dimethoxyphenyl)ethanamine (2C-H).
- 23 (xxv) Dimethylcathinone (Metamfepramone).
- 24 (xxvi) Ethcathinone.
- 25 (xxvii) 2-[4-(Ethylthio)-2,5-dimethoxyphenyl]ethanamine (2C-T-2).
- 26 (xxviii) Fencamfamin.
- 27 (xxix) Fenethylline.
- 28 (xxx) Fenproporex.
- 29 (xxxi) Fluoroamphetamine.
- 30 (xxxii) Fluoromethamphetamine.
- 31 (xxxiii) Fluoromethcathinone.
- 32 (xxxiv) 2-(4-Iodo-2,5-dimethoxyphenyl)ethanamine (2C-I).
- 33 (xxxv) 2-[4-(Isopropylthio)-2,5-dimethoxyphenyl]ethanamine(2C-T-4).
- 34 (xxxvi) Mazindol.
- 35 (xxxvii) Mefenorex.
- 36 (xxxviii) Methamphetamine.
- 37 (xxxix) Methcathinone.
- 38 (xl) Methiopropamine.
- 39 (xli) Methoxy-alpha-pyrrolidinopropiophenone (MOPPP).
- 40 (xlii) Methoxymethcathinone (methedrone).
- 41 (xliii) Methoxyphenethylamine mimetic substances that are any
- 42 substances derived from 2, 5-dimethoxy-phenethylamine by any substitution
- 43 at the phenyl ring, any substitution at the nitrogen atom, any
- 44 substitutions at the carbon atoms of the ethylamine, or any combination of
- 45 the above substitutions.
- 46 (xliv) 4-methylaminorex.

- 1 (xlv) Methyl-a-pyrrolidinobutiophenone (MPBP).
- 2 (xlvi) Methylenedioxy-alpha-pyrrolidinopropiophenone (MDPPP).
- 3 (xlvii) Methylenedioxyethcathinone (Ethylone).
- 4 (xlviii) Methylenedioxymethcathinone (Methylone).
- 5 (xlix) Methylenedioxypyrovalerone (MDPV).
- 6 (l) Methylmethcathinone (Mephedrone).
- 7 (li) Methylphenidate.
- 8 (lii) Modafinil.
- 9 (liii) Naphthylpyrovalerone (Naphyrone).
- 10 (liv) N-ethylamphetamine.
- 11 (lv) N, N-dimethylamphetamine.
- 12 (lvi) Pemoline.
- 13 (lvii) Phendimetrazine.
- 14 (lviii) Phenmetrazine.
- 15 (lix) Phentermine.
- 16 (lx) Pipradol.
- 17 (lxi) Propylhexedrine.
- 18 (lxii) Pyrovalerone.
- 19 (lxiii) Sibutramine.
- 20 (lxiv) Spa ((-)-1-dimethylamino-1,2-diphenylethane).
- 21 (d) Any material, compound, mixture or preparation that contains
- 22 any quantity of the following substances having a potential for abuse
- 23 associated with a depressant effect on the central nervous system:
- 24 (i) Any substance which contains any quantity of a derivative of
- 25 barbituric acid, or any salt of a derivative of barbituric acid, unless
- 26 specifically excepted.
- 27 (ii) Alprazolam.
- 28 (iii) Bromazepam.
- 29 (iv) Camazepam.
- 30 (v) Carisoprodol.
- 31 (vi) Chloral betaine.
- 32 (vii) Chloral hydrate.
- 33 (viii) Chlordiazepoxide.
- 34 (ix) Chlorhexadol.
- 35 (x) Clobazam.
- 36 (xi) Clonazepam.
- 37 (xii) Clorazepate.
- 38 (xiii) Clotiazepam.
- 39 (xiv) Cloxazolam.
- 40 (xv) Delorazepam.
- 41 (xvi) Diazepam.
- 42 (xvii) Dichloralphenazone.
- 43 (xviii) Estazolam.
- 44 (xix) Ethchlorvynol.
- 45 (xx) Ethinamate.
- 46 (xxi) Ethyl loflazepate.

- 1 (xxii) Etizolam.
- 2 (xxiii) Fenfluramine.
- 3 (xxiv) Fludiazepam.
- 4 (xxv) Flunitrazepam.
- 5 (xxvi) Flurazepam.
- 6 (xxvii) Gamma hydroxy butyrate.
- 7 (xxviii) Glutethimide.
- 8 (xxix) Halazepam.
- 9 (xxx) Haloxazolam.
- 10 (xxxi) Hydroxyphencyclidine (HO-PCP).
- 11 (xxxii) Ketamine.
- 12 (xxxiii) Ketazolam.
- 13 (xxxiv) Loprazolam.
- 14 (xxxv) Lorazepam.
- 15 (xxxvi) Lormetazepam.
- 16 (xxxvii) Lysergic acid.
- 17 (xxxviii) Mebutamate.
- 18 (xxxix) Mecloqualone.
- 19 (xl) Medazepam.
- 20 (xli) Meprobamate.
- 21 (xlii) Methaqualone.
- 22 (xliii) Methohexital.
- 23 (xliv) 2-(methoxyphenyl)-2-(ethylamino)cyclohexanone
- 24 (Methoxetamine).
- 25 (xlv) 2-(methoxyphenyl)-2-(methylamino)cyclohexanone
- 26 (Methoxyketamine).
- 27 (xlvi) Methoxyphencyclidine(MeO-PCP).
- 28 (xlvii) Methyprylon.
- 29 (xlviii) Midazolam.
- 30 (xlix) Nimetazepam.
- 31 (l) Nitrazepam.
- 32 (li) Nordiazepam.
- 33 (lii) Oxazepam.
- 34 (liii) Oxazolam.
- 35 (liv) Paraldehyde.
- 36 (lv) Petrichloral.
- 37 (lvi) Phencyclidine (PCP).
- 38 (lvii) Phencyclidine mimetic substances that are any substances
- 39 derived from phenylcyclohexylpiperidine by any substitution at the phenyl
- 40 ring, any substitution at the piperidine ring, any substitution at the
- 41 cyclohexyl ring, any replacement of the phenyl ring or any combination of
- 42 the above. Substances in the phenylcyclohexylpiperidine generic
- 43 definition include Amino-PCP, BCP, Bromo-PCP, BTCP, Chloro-PCP,
- 44 Fluoro-PCP, HO-PCP, MeO-PCP, Methyl-PCP, Nitro-PCP, Oxo-PCP, PCE, PCM,
- 45 PCPY, TCP and TCPY.
- 46 (lviii) Pinazepam.

- 1 (lix) Prazepam.
- 2 (lx) Scopolamine.
- 3 (lxi) Sulfondiethylmethane.
- 4 (lxii) Sulfonethylmethane.
- 5 (lxiii) Sulfonmethane.
- 6 (lxiv) Quazepam.
- 7 (lxv) Temazepam.
- 8 (lxvi) Tetrazepam.
- 9 (lxvii) Tiletamine.
- 10 (lxviii) Triazolam.
- 11 (lxix) Zaleplon.
- 12 (lxx) Zolazepam.
- 13 (lxxi) Zolpidem.
- 14 (lxxii) Zopiclone.
- 15 (e) Any material, compound, mixture or preparation that contains
- 16 any quantity of the following anabolic steroids and their salts, isomers
- 17 or esters:
- 18 (i) Boldenone.
- 19 (ii) Clostebol (4-chlorotestosterone).
- 20 (iii) Dehydrochloromethyltestosterone.
- 21 (iv) Drostanolone.
- 22 (v) Ethylestrenol.
- 23 (vi) Fluoxymesterone.
- 24 (vii) Formebolone (formebolone).
- 25 (viii) Mesterolone.
- 26 (ix) Methandriol.
- 27 (x) Methandrostenolone (methandienone).
- 28 (xi) Methenolone.
- 29 (xii) Methyltestosterone.
- 30 (xiii) Mibolerone.
- 31 (xiv) Nandrolone.
- 32 (xv) Norethandrolon.
- 33 (xvi) Oxandrolone.
- 34 (xvii) Oxymesterone.
- 35 (xviii) Oxymetholone.
- 36 (xix) Stanolone (4-dihydrotestosterone).
- 37 (xx) Stanozolol.
- 38 (xxi) Testolactone.
- 39 (xxii) Testosterone.
- 40 (xxiii) Trenbolone.
- 41 7. "Deliver" means the actual, constructive or attempted exchange
- 42 from one person to another, whether or not there is an agency
- 43 relationship.
- 44 8. "Director" means the director of the department of health
- 45 services.

1 9. "Dispense" means distribute, leave with, give away, dispose of
2 or deliver.

3 10. "Drug court program" means a program that is established
4 pursuant to section 13-3422 by the presiding judge of the superior court
5 in cooperation with the county attorney in a county for the purpose of
6 prosecuting, adjudicating and treating drug dependent persons who meet the
7 criteria and guidelines for entry into the program that are developed and
8 agreed on by the presiding judge and the prosecutor.

9 11. "Drug dependent person" means a person who is using a substance
10 that is listed in paragraph 6, 19, 20, 21 or 28 of this section and who is
11 in a state of psychological or physical dependence, or both, arising from
12 the use of that substance.

13 12. "Federal act" has the same meaning prescribed in section
14 32-1901.

15 13. "Isoamidone" means any substance identified chemically as
16 (4-4-diphenyl-5-methyl-6-dimethylaminohexanone-3), or any salt of such
17 substance, by whatever trade name designated.

18 14. "Isonipecaine" means any substance identified chemically as
19 (1-methyl-4-phenyl-piperidine-4-carboxylic acid ethyl ester), or any salt
20 of such substance, by whatever trade name designated.

21 15. "Ketobemidone" means any substance identified chemically as
22 (4-(3-hydroxyphenyl)-1-methyl-4-piperidylethyl ketone hydrochloride), or
23 any salt of such substance, by whatever trade name designated.

24 16. "Licensed" or "permitted" means authorized by the laws of this
25 state to do certain things.

26 17. "Manufacture" means produce, prepare, propagate, compound, mix
27 or process, directly or indirectly, by extraction from substances of
28 natural origin or independently by means of chemical synthesis, or by a
29 combination of extraction and chemical synthesis. Manufacture includes
30 any packaging or repackaging or labeling or relabeling of containers.
31 Manufacture does not include any producing, preparing, propagating,
32 compounding, mixing, processing, packaging or labeling done in conformity
33 with applicable state and local laws and rules by a licensed practitioner
34 incident to and in the course of his licensed practice.

35 18. "Manufacturer" means a person who manufactures a narcotic or
36 dangerous drug or other substance controlled by this chapter.

37 19. "Marijuana" means all parts of any plant of the genus cannabis,
38 from which the resin has not been extracted, whether growing or not, and
39 the seeds of such plant. Marijuana does not include the mature stalks of
40 such plant or the sterilized seed of such plant which is incapable of
41 germination.

42 20. "Narcotic drugs" means the following, whether of natural or
43 synthetic origin and any substance neither chemically nor physically
44 distinguishable from them:

45 (a) Acetyl-alpha-methylfentanyl.

46 (b) Acetylmethadol.

- 1 (c) Alfentanil.
- 2 (d) Allylprodine.
- 3 (e) Alphacetylmethadol.
- 4 (f) Alphameprodine.
- 5 (g) Alphamethadol.
- 6 (h) Alpha-methylfentanyl.
- 7 (i) Alpha-methylthiofentanyl.
- 8 (j) Alphaprodine.
- 9 (k) Amidone (methadone).
- 10 (l) Anileridine.
- 11 (m) Benzethidine.
- 12 (n) Benzylfentanyl.
- 13 (o) Betacetylmethadol.
- 14 (p) Beta-hydroxyfentanyl.
- 15 (q) Beta-hydroxy-3-methylfentanyl.
- 16 (r) Betameprodine.
- 17 (s) Betamethadol.
- 18 (t) Betaprodine.
- 19 (u) Bezitramide.
- 20 (v) Buprenorphine and its salts.
- 21 (w) Butonitazene.
- 22 (x) Cannabis.
- 23 (y) Carfentanil.
- 24 (z) 4-chloro-n-[-1-[2-(4-nitrophenyl)ethyl]-2-piperidinylidene]benz
- 25 enesulfonamide (W-18).
- 26 (aa) 4-chloro-n-[1-(2-phenylethyl)-2-piperidinylidene]
- 27 benzenesulfonamide (W-15).
- 28 (bb) Clonitazene.
- 29 (cc) Coca leaves.
- 30 (dd) 1-cyclohexyl-4-(1,2-diphenylethyl)piperazine (MT-45).
- 31 (ee) Dextromoramide.
- 32 (ff) Dextropropoxyphene.
- 33 (gg) Diampromide.
- 34 (hh) 3,4-dichloro-n-(-[1-(dimethylamino)cyclohexyl]methyl)-benzamid
- 35 e (AH-7921).
- 36 (ii) 3,4-dichloro-n-[2-(dimethylamino)cyclohexyl]-N-methylbenzamide
- 37 (U-47700).
- 38 (jj) Diethylthiambutene.
- 39 (kk) DifenoXin.
- 40 (ll) Dihydrocodeine.
- 41 (mm) Dimenoxadol.
- 42 (nn) Dimepheptanol.
- 43 (oo) Dimethylthiambutene.
- 44 (pp) Dioxaphetyl butyrate.
- 45 (qq) Diphenidine (DEP).
- 46 (rr) Diphenoxylate.

1 (ss) Dipipanone.
2 (tt) Ephedrine.
3 (uu) Ethylmethylthiambutene.
4 (vv) Etodesnitazene.
5 (ww) Etonitazene.
6 (xx) Etonitazepyne.
7 (yy) Etoxeridine.
8 (zz) Fentanyl.
9 (aaa) Fentanyl mimetic substances that are any substances derived
10 from fentanyl by any substitution in the phenethyl group, any substitution
11 in the piperidine ring, any substitution in the aniline ring, any
12 replacement of the phenyl portion of the phenethyl group, any replacement
13 of the N-propionyl group or any combination of the above.
14 (bbb) Flunitazene.
15 (ccc) Furethidine.
16 (ddd) Hydroxypethidine.
17 (eee) Isoamidone (isomethadone).
18 (fff) Isophenidine.
19 (ggg) Isotonitazene.
20 (hhh) Pethidine (meperidine).
21 (iii) Ketobemidone.
22 (jjj) ANY MATERIAL, COMPOUND, MIXTURE OR PREPARATION THAT CONTAINS
23 ANY OF THE FOLLOWING:
24 (i) AT LEAST EIGHT HUNDRED PARTS PER MILLION OF
25 7-HYDROXYMITRAGYNINE.
26 (ii) ANY QUANTITY OF SYNTHETIC 7-HYDROXYMITRAGYNINE, SYNTHETIC
27 MITRAGYNINE OR PSEUDOINDOXYL OR ANY OTHER SYNTHETICALLY DERIVED COMPOUND
28 OF THE PLANT MITRAGYNA SPECIOSA.
29 ~~(jjj)~~ (kkk) Lefetamine.
30 ~~(kkk)~~ (lll) Levomethorphan.
31 ~~(lll)~~ (mmm) Levomoramide.
32 ~~(mmm)~~ (nnn) Levophenacymorphan.
33 ~~(nnn)~~ (ooo) Levorphanol.
34 ~~(ooo)~~ (ppp) Metazocine.
35 ~~(ppp)~~ (qqq) Methoxphenidine (MXP).
36 ~~(qqq)~~ (rrr) 3-methylfentanyl.
37 ~~(rrr)~~ (sss) 1-methyl-4-phenyl-4-propionoxypiperidine (MPPP).
38 ~~(sss)~~ (ttt) 3-methylthiofentanyl.
39 ~~(ttt)~~ (uuu) Metodesnitazene.
40 ~~(uuu)~~ (vvv) Metonitazene.
41 ~~(vvv)~~ (www) Morpheridine.
42 ~~(www)~~ (xxx) Noracymethadol.
43 ~~(xxx)~~ (yyy) Norlevorphanol.
44 ~~(yyy)~~ (zzz) Normethadone.
45 ~~(zzz)~~ (aaaa) Norpipanone.
46 ~~(aaaa)~~ (bbbb) Opium.

1 ~~(bbbb)~~ (cccc) Para-fluorofentanyl.
2 ~~(cccc)~~ (dddd) Pentazocine.
3 ~~(dddd)~~ (eeee) Phenadoxone.
4 ~~(eeee)~~ (ffff) Phenampromide.
5 ~~(ffff)~~ (gggg) Phenazocine.
6 ~~(gggg)~~ (hhhh) 1-(2-phenethyl)-4-phenyl-4-acetoxypiperidine
7 (PEPAP).
8 ~~(hhhh)~~ (iiii) Phenomorphan.
9 ~~(iiii)~~ (jjjj) Phenoperidine.
10 ~~(jjjj)~~ (kkkk) Piminodine.
11 ~~(kkkk)~~ (llll) Piritramide.
12 ~~(llll)~~ (mmmm) Proheptazine.
13 ~~(mmmm)~~ (nnnn) Properidine.
14 ~~(nnnn)~~ (oooo) Propiram.
15 ~~(oooo)~~ (pppp) Protonitazene.
16 ~~(pppp)~~ (qqqq) Racemethorphan.
17 ~~(qqqq)~~ (rrrr) Racemoramide.
18 ~~(rrrr)~~ (ssss) Racemorphan.
19 ~~(ssss)~~ (tttt) Remifentanil.
20 ~~(tttt)~~ (uuuu) Sufentanil.
21 ~~(uuuu)~~ (vvvv) Thenylfentanyl.
22 ~~(vvvv)~~ (www) Thiofentanyl.
23 ~~(www)~~ (xxxx) Tilidine.
24 ~~(xxxx)~~ (yyyy) Tramadol, 2-[(dimethylamino)methyl]-1-(3-
25 methoxyphenyl) cyclohexanol, and its salts, optical and geometric isomers,
26 and its salts of isomers.
27 ~~(yyyy)~~ (zzzz) Trimeperidine.
28 21. "Opium" means any compound, manufacture, salt, isomer, salt of
29 isomer, derivative, mixture or preparation of the following, but does not
30 include apomorphine or any of its salts:
31 (a) Acetorphine.
32 (b) Acetyldihydrocodeine.
33 (c) Benzylmorphine.
34 (d) Codeine.
35 (e) Codeine methylbromide.
36 (f) Codeine-N-oxide.
37 (g) Cyprenorphine.
38 (h) Desomorphine.
39 (i) Dihydromorphine.
40 (j) Drotebanol.
41 (k) Ethylmorphine.
42 (l) Etorphine.
43 (m) Heroin.
44 (n) Hydrocodone.
45 (o) Hydromorphanol.
46 (p) Hydromorphone.

- 1 (q) Levo-alphaacetylmethadol.
- 2 (r) Methylmorphine.
- 3 (s) Methylhydromorphone.
- 4 (t) Metopon.
- 5 (u) Morphine.
- 6 (v) Morphine methylbromide.
- 7 (w) Morphine methylsulfonate.
- 8 (x) Morphine-N-oxide.
- 9 (y) Myrophine.
- 10 (z) Nalorphine.
- 11 (aa) Nicocodeine.
- 12 (bb) Nicomorphine.
- 13 (cc) Normorphine.
- 14 (dd) Oxycodone.
- 15 (ee) Oxymorphone.
- 16 (ff) Pholcodine.
- 17 (gg) Thebacon.
- 18 (hh) Thebaine.
- 19 22. "Ordinary ephedrine, pseudoephedrine, (-)-norpseudoephedrine or
- 20 phenylpropanolamine product" means a product that contains ephedrine,
- 21 pseudoephedrine, (-)-norpseudoephedrine or phenylpropanolamine and that is
- 22 all of the following:
 - 23 (a) Approved for sale under the federal act.
 - 24 (b) Labeled, advertised and marketed only for an indication that is
 - 25 approved by the federal food and drug administration.
 - 26 (c) Either:
 - 27 (i) A nonliquid that is sold in package sizes of not more than
 - 28 three grams of ephedrine, pseudoephedrine, (-)-norpseudoephedrine or
 - 29 phenylpropanolamine and that is packaged in blister packs containing not
 - 30 more than two dosage units or, if the use of blister packs is technically
 - 31 infeasible, that is packaged in unit dose packets or pouches.
 - 32 (ii) A liquid that is sold in package sizes of not more than three
 - 33 grams of ephedrine, pseudoephedrine, (-)-norpseudoephedrine or
 - 34 phenylpropanolamine.
- 35 23. "Peyote" means any part of a plant of the genus *lophophora*,
- 36 known as the mescal button.
- 37 24. "Pharmacy" means a licensed business where drugs are compounded
- 38 or dispensed by a licensed pharmacist.
- 39 25. "Practitioner" means a person licensed to prescribe and
- 40 administer drugs.
- 41 26. "Precursor chemical I" means any material, compound, mixture or
- 42 preparation which contains any quantity of the following substances and
- 43 their salts, optical isomers or salts of optical isomers:
 - 44 (a) N-acetyl-anthranilic acid.
 - 45 (b) Anthranilic acid.
 - 46 (c) Ephedrine.

- 1 (d) Ergotamine.
- 2 (e) Isosafrole.
- 3 (f) Lysergic acid.
- 4 (g) Methylamine.
- 5 (h) N-ethylephedrine.
- 6 (i) N-ethylpseudoephedrine.
- 7 (j) N-methylephedrine.
- 8 (k) N-methylpseudoephedrine.
- 9 (l) Norephedrine.
- 10 (m) (-)-Norpseudoephedrine.
- 11 (n) Phenylacetic acid.
- 12 (o) Phenylpropanolamine.
- 13 (p) Piperidine.
- 14 (q) Pseudoephedrine.
- 15 27. "Precursor chemical II" means any material, compound, mixture
- 16 or preparation which contains any quantity of the following substances and
- 17 their salts, optical isomers or salts of optical isomers:
- 18 (a) 4-cyano-2-dimethylamino-4, 4-diphenyl butane.
- 19 (b) 4-cyano-1-methyl-4-phenylpiperidine.
- 20 (c) Chlorephedrine.
- 21 (d) Chlorpseudoephedrine.
- 22 (e) Ethyl-4-phenylpiperidine-4-carboxylate.
- 23 (f) 2-methyl-3-morpholino-1, 1-diphenylpropane-carboxylic acid.
- 24 (g) 1-methyl-4-phenylpiperidine-4-carboxylic acid.
- 25 (h) N-formyl amphetamine.
- 26 (i) N-formyl methamphetamine.
- 27 (j) Phenyl-2-propanone.
- 28 (k) 1-piperidinocyclohexane carbonitrile.
- 29 (l) 1-pyrrolidinocyclohexane carbonitrile.
- 30 28. "Prescription-only drug" does not include a dangerous drug or
- 31 narcotic drug but means:
- 32 (a) Any drug which because of its toxicity or other potentiality
- 33 for harmful effect, or the method of its use, or the collateral measures
- 34 necessary to its use, is not generally recognized among experts, qualified
- 35 by scientific training and experience to evaluate its safety and efficacy,
- 36 as safe for use except by or under the supervision of a medical
- 37 practitioner.
- 38 (b) Any drug that is limited by an approved new drug application
- 39 under the federal act or section 32-1962 to use under the supervision of a
- 40 medical practitioner.
- 41 (c) Every potentially harmful drug, the labeling of which does not
- 42 bear or contain full and adequate directions for use by the consumer.
- 43 (d) Any drug required by the federal act to bear on its label the
- 44 legend "Caution: Federal law prohibits dispensing without prescription"
- 45 or "Rx only".

1 29. "Produce" means grow, plant, cultivate, harvest, dry, process
2 or prepare for sale.

3 30. "Regulated chemical" means the following substances in bulk
4 form that are not a useful part of an otherwise lawful product:

5 (a) Acetic anhydride.

6 (b) Hypophosphorous acid.

7 (c) Iodine.

8 (d) Sodium acetate.

9 (e) Red phosphorus.

10 (f) Gamma butyrolactone (GBL).

11 (g) 1, 4-butanediol.

12 (h) Butyrolactone.

13 (i) 1, 2 butanolide.

14 (j) 2-oxanalone.

15 (k) Tetrahydro-2-furanone.

16 (l) Dihydro-2(3H)-furanone.

17 (m) Tetramethylene glycol.

18 31. "Retailer" means either:

19 (a) A person other than a practitioner who sells any precursor
20 chemical or regulated chemical to another person for purposes of
21 consumption and not resale, whether or not the person possesses a permit
22 issued pursuant to title 32, chapter 18.

23 (b) A person other than a manufacturer or wholesaler who purchases,
24 receives or acquires more than twenty-four grams of a precursor chemical.

25 32. "Sale" or "sell" means an exchange for anything of value or
26 advantage, present or prospective.

27 33. "Sale for personal use" means the retail sale for a legitimate
28 medical use in a single transaction to an individual customer, to an
29 employer for dispensing to employees from first aid kits or medicine
30 chests or to a school for administration pursuant to section 15-344.

31 34. "Scientific purpose" means research, teaching or chemical
32 analysis.

33 35. "Suspicious transaction" means a transaction to which any of
34 the following applies:

35 (a) A report is required under the federal act.

36 (b) The circumstances would lead a reasonable person to believe
37 that any person is attempting to possess a precursor chemical or regulated
38 chemical for the purpose of unlawful manufacture of a dangerous drug or
39 narcotic drug, based on such factors as the amount involved, the method of
40 payment, the method of delivery and any past dealings with any
41 participant.

42 (c) The transaction involves payment for precursor or regulated
43 chemicals in cash or money orders in a total amount of more than \$200.

44 (d) The transaction involves a sale, a transfer or furnishing to a
45 retailer for resale without a prescription of ephedrine, pseudoephedrine,
46 (-)-norpseudoephedrine or phenylpropanolamine that is not an ordinary

1 ephedrine, pseudoephedrine, (-)-norpseudoephedrine or phenylpropanolamine
2 product.

3 36. "Threshold amount" means a weight, market value or other form
4 of measurement of an unlawful substance as follows:

5 (a) One gram of heroin.

6 (b) Nine grams of cocaine, including hydrolyzed cocaine.

7 (c) Four grams or 50 milliliters of PCP.

8 (d) Nine grams of methamphetamine, including methamphetamine in
9 liquid suspension.

10 (e) Nine grams of amphetamine, including amphetamine in liquid
11 suspension.

12 (f) One-half milliliter of lysergic acid diethylamide, or in the
13 case of blotter dosage units fifty dosage units.

14 (g) Two pounds of marijuana.

15 (h) Nine grams of fentanyl or fentanyl mimetic substances.

16 (i) For any combination consisting solely of those unlawful
17 substances listed in subdivisions (a) through (h) of this paragraph, an
18 amount equal to or in excess of the threshold amount, as determined by the
19 application of section 13-3420.

20 (j) For any unlawful substance not listed in subdivisions (a)
21 through (h) of this paragraph or any combination involving any unlawful
22 substance not listed in subdivisions (a) through (h) of this paragraph, a
23 value of at least \$1,000.

24 37. "Transfer" means furnish, deliver or give away.

25 38. "Vapor-releasing substance containing a toxic substance" means
26 a material which releases vapors or fumes containing any of the following:

27 (a) Ketones, including acetone, methyl ethyl ketone, mibk, miak,
28 isophorone and mesityl oxide.

29 (b) Hydrocarbons, including propane, butane, pentane, hexane,
30 heptane and halogenated hydrocarbons.

31 (c) Ethylene dichloride.

32 (d) Pentachlorophenol.

33 (e) Chloroform.

34 (f) Methylene chloride.

35 (g) Trichloroethylene.

36 (h) Difluoroethane.

37 (i) Tetrafluoroethane.

38 (j) Aldehydes, including formaldehyde.

39 (k) Acetates, including ethyl acetate and butyl acetate.

40 (l) Aromatics, including benzene, toluene, xylene, ethylbenzene and
41 cumene.

42 (m) Alcohols, including methyl alcohol, ethyl alcohol, isopropyl
43 alcohol, butyl alcohol and diacetone alcohol.

44 (n) Ether, including Diethyl ether and petroleum ether.

45 (o) Nitrous oxide.

46 (p) Amyl nitrite.

1 (q) Isobutyl nitrite.

2 39. "Weight" unless otherwise specified includes the entire weight
3 of any mixture or substance that contains a detectable amount of an
4 unlawful substance. If a mixture or substance contains more than one
5 unlawful substance, the weight of the entire mixture or substance is
6 assigned to the unlawful substance that results in the greater offense. If
7 a mixture or substance contains lysergic acid diethylamide, the offense
8 that results from the unlawful substance shall be based on the greater
9 offense as determined by the entire weight of the mixture or substance or
10 the number of blotter dosage units. For the purposes of this paragraph,
11 "mixture" means any combination of substances from which the unlawful
12 substance cannot be removed without a chemical process.

13 40. "Wholesaler" means a person who in the usual course of business
14 lawfully supplies narcotic drugs, dangerous drugs, precursor chemicals or
15 regulated chemicals that he himself has not produced or prepared, but not
16 to a person for the purpose of consumption by the person, whether or not
17 the wholesaler has a permit that is issued pursuant to title 32,
18 chapter 18. Wholesaler includes a person who sells, delivers or dispenses
19 a precursor chemical in an amount or under circumstances that would
20 require registration as a distributor of precursor chemicals under the
21 federal act.

22 Sec. 2. Section 36-795, Arizona Revised Statutes, is amended to
23 read:

24 36-795. Definitions

25 In this article, unless the context otherwise requires:

26 ~~1. "Food" means a food as defined in section 36-901, food product,~~
27 ~~food ingredient, dietary ingredient, dietary supplement or beverage for~~
28 ~~human consumption.~~

29 1. "KRATOM" MEANS THE PLANT OR ANY PART OF THE PLANT MITRAGYNA
30 SPECIOSA.

31 2. "Kratom product" means ~~a food~~ ANY product ~~or dietary ingredient~~
32 ~~containing any part of the leaf of the plant mitragyna speciosa~~ THAT IS
33 MADE FROM KRATOM AND THAT IS MADE TO BE INGESTIBLE OR INHALABLE.

34 ~~3. "Processor" means a person that sells, prepares, manufactures,~~
35 ~~distributes, wholesales or maintains kratom products or that advertises,~~
36 ~~represents or holds itself out as selling, preparing or maintaining kratom~~
37 ~~products.~~

38 ~~4. "Retailer" means a person that sells or distributes kratom~~
39 ~~products or that advertises, represents or holds itself out as selling or~~
40 ~~maintaining kratom products.~~

41 Sec. 3. Repeal

42 Section 36-795.01, Arizona Revised Statutes, is repealed.

1 Sec. 4. Title 36, chapter 6, article 10, Arizona Revised Statutes,
2 is amended by adding a new section 36-795.01, to read:

3 36-795.01. Kratom products; labeling required

4 ANY KRATOM PRODUCT THAT IS OFFERED FOR SALE OR SOLD IN THIS STATE
5 MUST INCLUDE A LABEL OR CONSUMER SCANNABLE QUICK RESPONSE CODE OR SIMILAR
6 TECHNOLOGY THAT PROVIDES ALL OF THE FOLLOWING:

7 1. THE INGREDIENTS OF THE KRATOM PRODUCT.

8 2. THE QUANTITY OF MITRAGYNINE OR 7-HYDROXYMITRAGYNINE IN THE
9 KRATOM PRODUCT.

10 3. THE RECOMMEND SERVING SIZE OF THE KRATOM PRODUCT.

11 4. THE NUMBER OF SERVINGS IN THE KRATOM PRODUCT.

12 Sec. 5. Section 36-795.02, Arizona Revised Statutes, is amended to
13 read:

14 36-795.02. Prohibited manufacture, distribution and sales;
15 minimum age

16 ~~A. A processor or retailer may not prepare, distribute, sell or~~
17 ~~expose for sale any of the following:~~

18 ~~1. A kratom product that is adulterated with a dangerous nonkratom~~
19 ~~substance. A kratom product is adulterated with a dangerous nonkratom~~
20 ~~substance if the kratom product is mixed or packed with a nonkratom~~
21 ~~substance and that substance affects the quality or strength of the kratom~~
22 ~~product to such a degree as to render the kratom product injurious to a~~
23 ~~consumer.~~

24 ~~2. A kratom product that is contaminated with a dangerous nonkratom~~
25 ~~substance. A kratom product is contaminated with a dangerous nonkratom~~
26 ~~substance if the kratom product contains a poisonous or otherwise~~
27 ~~deleterious nonkratom substance, including any controlled substance~~
28 ~~prescribed by chapter 27 of this title or rules adopted pursuant to~~
29 ~~chapter 27 of this title.~~

30 ~~3. A kratom product containing a level of 7-hydroxymitragynine in~~
31 ~~the alkaloid fraction that is greater than two percent of the alkaloid~~
32 ~~composition of the product.~~

33 ~~4. A kratom product containing any synthetic alkaloid, including~~
34 ~~synthetic mitragynine, synthetic 7-hydroxymitragynine or any other~~
35 ~~synthetically derived compounds of the kratom plant.~~

36 ~~5. Any kratom-containing product that does not include on its~~
37 ~~package or label the amount of mitragynine and 7-hydroxymitragynine~~
38 ~~contained in the product.~~

39 ~~B. A processor or retailer~~ PERSON may not ~~PREPARE, MANUFACTURE,~~
40 ~~distribute, TRANSPORT, OFFER FOR SALE OR~~ sell ~~or expose for sale~~ a kratom
41 product to an individual who is under ~~eighteen~~ TWENTY-ONE years of age.

1 Sec. 6. Section 36-795.03, Arizona Revised Statutes, is amended to
2 read:

3 36-795.03. Enforcement; violations; classification

4 ~~A. In addition to the violations and remedies specified in this~~
5 ~~section, violations and enforcement of this article are governed by~~
6 ~~chapter 8 of this title.~~

7 ~~B. A. A processor or retailer that~~ PERSON WHO violates section
8 36-795.01, ~~subsection B or section 36-795.02~~ is guilty of a class 2
9 misdemeanor.

10 B. A PERSON WHO VIOLATES SECTION 36-795.02 IS GUILTY OF A CLASS 1
11 MISDEMEANOR.

12 C. A PERSON WHO COMMITS A SECOND OR SUBSEQUENT VIOLATION OF SECTION
13 36-795.02 WITHIN TWENTY-FOUR MONTHS IS GUILTY OF A CLASS 6 FELONY.

14 ~~C. D.~~ D. In addition to and distinct from any other remedy at law or
15 equity, a person WHO IS aggrieved by a violation of section
16 36-795.01, ~~subsection B or section 36-795.02, subsection A~~ may bring a
17 private cause of action in a court of competent jurisdiction for damages
18 resulting from that violation, including economic, noneconomic or
19 consequential damages.

20 ~~D. A processor or retailer does not violate section 36-795.01,~~
21 ~~subsection B or section 36-795.02, subsection A if the court finds by a~~
22 ~~preponderance of the evidence that the processor or retailer relied in~~
23 ~~good faith on the representation of a manufacturer, packer or distributor~~
24 ~~that the food was a kratom product.~~

25 Sec. 7. Title 36, chapter 6, article 10, Arizona Revised Statutes,
26 is amended by adding [section] [sections] 36-795.04 [and 36-795.05], to
27 read:

28 36-795.04. Kratom products; packaging; advertising; warning;
29 enforcement

30 A. A PERSON WHO SELLS KRATOM PRODUCTS MAY NOT:

31 1. PACKAGE OR LABEL ANY KRATOM PRODUCT IN A FALSE OR MISLEADING
32 MANNER.

33 2. ADVERTISE KRATOM OR KRATOM PRODUCTS, INCLUDING KRATOM
34 PARAPHERNALIA, TO INDIVIDUALS WHO ARE UNDER TWENTY-ONE YEARS OF AGE,
35 INCLUDING ADVERTISING:

36 (a) WITH NAMES THAT RESEMBLE OR IMITATE FOOD OR DRINK BRANDS THAT
37 ARE MARKETED TO CHILDREN.

38 (b) WITH IMAGES OR LIKENESSES OF TOYS, CARTOONS OR ANIMATED OR
39 FICTIONAL CHARACTERS, INCLUDING SANTA CLAUS, THAT ARE DESIGNED TO APPEAL
40 TO OR ENCOURAGE INDIVIDUALS WHO ARE UNDER TWENTY-ONE YEARS OF AGE TO
41 CONSUME KRATOM OR KRATOM PRODUCTS.

42 (c) IN A MEDIUM THAT SPECIFICALLY APPEALS TO INDIVIDUALS WHO ARE
43 UNDER TWENTY-ONE YEARS OF AGE SUCH THAT THE ADVERTISING HAS A SPECIAL
44 ATTRACTIVENESS TO INDIVIDUALS WHO ARE UNDER TWENTY-ONE YEARS OF AGE BEYOND
45 GENERAL ATTRACTIVENESS FOR INDIVIDUALS WHO ARE AT LEAST TWENTY-ONE YEARS
46 OF AGE.

3. ADVERTISE ANY HEALTH-RELATED STATEMENT OR STATEMENT REGARDING THE EFFECTS OF KRATOM CONSUMPTION ON HEALTH THAT IS KNOWN TO BE UNTRUE. ANY ADVERTISING UNDER THIS ARTICLE INVOLVING DIRECT, INDIVIDUALIZED COMMUNICATION OR DIALOGUE SHALL USE A METHOD OF AGE AFFIRMATION TO VERIFY THAT THE RECIPIENT IS AT LEAST TWENTY-ONE YEARS OF AGE BEFORE ENGAGING IN THE COMMUNICATION OR DIALOGUE. FOR THE PURPOSES OF THIS SUBSECTION, THE METHOD OF AGE AFFIRMATION MAY INCLUDE USER CONFIRMATION, BIRTH DATE DISCLOSURE OR OTHER SIMILAR REGISTRATION METHODS.

9 B. AN INDIVIDUAL OR ENTITY THAT VIOLATES THIS SECTION, ON
10 NOTIFICATION BY THE DEPARTMENT OR THE ATTORNEY GENERAL'S OFFICE, HAS
11 FOURTEEN DAYS TO COMPLY WITH THE REQUIREMENTS OF THIS SECTION.

12 C. THIS SECTION SHALL BE ENFORCED BY THE ATTORNEY GENERAL.

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13 36-795.05. Kratom testing; analysis; limitations;  
14 coordination
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15 [A. A LAW ENFORCEMENT AGENCY OR CRIME LABORATORY IS NOT REQUIRED TO
16 TEST OR ANALYZE A KRATOM PRODUCT OR ANY OTHER PRODUCT TO IDENTIFY THE
17 PRESENCE OF KRATOM OR TO DISTINGUISH BETWEEN NATURAL AND SYNTHETIC KRATOM
18 IF THE LAW ENFORCEMENT AGENCY OR CRIME LABORATORY DOES NOT POSSESS THE
19 NECESSARY CAPABILITY.

20 B. IF A LAW ENFORCEMENT AGENCY OR CRIME LABORATORY DOES NOT POSSESS
21 THE NECESSARY CAPABILITY TO TEST OR ANALYZE A KRATOM PRODUCT OR ANY OTHER
22 PRODUCT TO IDENTIFY THE PRESENCE OF KRATOM OR TO DISTINGUISH BETWEEN
23 NATURAL AND SYNTHETIC KRATOM, THE ATTORNEY GENERAL MAY COORDINATE TESTING
24 AND ANALYSIS THROUGH A QUALIFIED LABORATORY.]

25 Enroll and engross to conform

26 Amend title to conform

JOHN KAVANAGH

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04/06/2026

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